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Case Name: *Richard Chamberlain v. Santa Clara County Public Defender's Office, et al.*

Case No.: 25CV456680

PLAINTIFF'S MOTION TO COMPEL

Plaintiff Richard Chamberlain moves to compel named Defendant Santa Clara County District Attorney's Office ("DAO") to serve verified responses, without objection, to Plaintiff's First Set of Interrogatories (Set One), and seeks \$1,500 in monetary sanctions.

A plaintiff may propound interrogatories to a party only after the party has been served with the summons or has appeared in the action. (Code Civ. Proc., § 2030.020, subd. (b).) If a party to whom interrogatories are directed fails to respond, the propounding party may move to compel responses. (Id., § 2030.290, subd. (b).)

Here, Plaintiff electronically served the interrogatories on December 15, 2025. The proof of service identifies Deputy County Counsel Mark Bernal as a recipient. Mr. Bernal's declaration, however, establishes that he represents the Santa Clara County Public Defender's Office, not the DAO, and that the DAO has neither been served with the summons and complaint nor appeared in this action. Plaintiff has not shown otherwise.

Accordingly, Plaintiff has not established that the interrogatories were properly propounded on the DAO or that the DAO was subject to a duty to respond under Code of Civil Procedure section 2030.020. The statutory basis for an order compelling responses under section 2030.290 is therefore absent.

The Court need not determine on this motion whether the DAO is a proper defendant or separately suable entity. Nothing in this ruling precludes Plaintiff from pursuing discovery through procedures authorized by the Code of Civil Procedure.

Accordingly, Plaintiff's Motion to Compel Responses to Plaintiff's First Set of Interrogatories (Set One) to Defendant Santa Clara County District Attorney's Office is DENIED without prejudice. The request for \$1,500 in monetary sanctions is DENIED as not applicable.

The Court will prepare the Order.

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Case Name: *JPMorgan Chase Bank, N.a v Holly Reyes*

Case No. 25CV464505

This action was filed by Plaintiff on April 25, 2025. Defendant failed to file and Answer and Plaintiff subsequently submitted a Request for Default and Default Judgment on or around August 12, 2025. A Default Judgment was entered against Defendant on January 30, 2026. Thereafter, Plaintiff received notice that Defendant filed for bankruptcy on January 9, 2026, imposing an automatic stay of this case.

Plaintiff now requests pursuant to California Code of Civil Procedure 473(d) that the Default Judgment be vacated and the instant case be dismissed without prejudice. Good cause shown, the motion is GRANTED.

Plaintiff to prepare the final proposed order, accompanied by the necessary Form EFS-020 within 7 days of the hearing.

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